

Barbara Warner Workplace Domestic Violence Report



Ohio | Department
of Health



Report to
Governor Mike DeWine

SFY2020/2021

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SFY 2020/2021

Honorable Governor DeWine:

The Barbara Warner Workplace Domestic Violence Committee is charged with implementation of your executive order that affirms the enactment of the Barbara Warner Workplace Domestic Violence Policy. The committee first convened in January 2009.

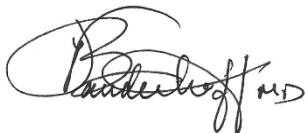
The policy is named in honor of Barbara Warner, a staff member at the Ohio Department of Health (ODH) who was murdered by her husband in 1997. Our ongoing efforts are to minimize the impact of domestic violence by supporting victims and holding those causing harm accountable as early as possible so all those involved have the opportunity to live their best life.

In the first full state fiscal year (SFY) of your administration, the State of Ohio made significant strides forward in our effort to support state employees affected by domestic violence. This work took on added significance in the face of the COVID-19 pandemic, which created additional risks and challenges for domestic violence. Our work also continues to be informed by the reality that criminal justice differently impacts communities of color, a topic that has been the focus of increased awareness resulting from current events.

During this biennium, Ohio issued a revised policy, resource materials, and online learning modules, and provided training for human resources professionals. All materials reflect the additional priorities identified in your Executive Order 2019-09D, maintaining and expanding existing efforts to address domestic violence among State of Ohio employees.

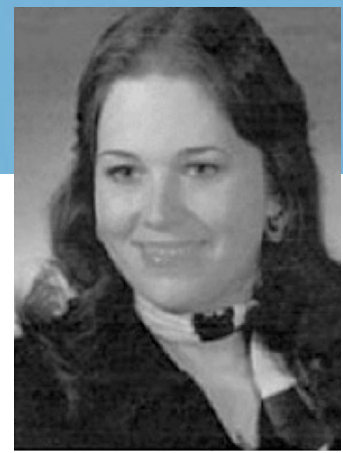
The committee continues to work with the Ohio Department of Administrative Services (DAS) and the Ohio Employee Assistance Program (OEAP) to ensure a coordinated approach to implementation of your executive order.

Sincerely,

A handwritten signature in black ink, appearing to read "Bruce Vanderhoff", with a stylized flourish at the end.

Bruce Vanderhoff, MD, MBA
Director
Ohio Department of Health

Barbara Warner Workplace Domestic Violence Policy



Barbara Warner

In Executive Order 2019-09D, Ohio Governor Mike DeWine affirmed the implementation of the state's "Barbara Warner Workplace Domestic Violence Policy." This policy was established in 2008.

Domestic violence is a public health issue in Ohio, characterized by a pattern of coercive control used by one person to gain power over family or household members. Domestic violence may include verbal, emotional, financial/resource, sexual, and physical types of abuse. Domestic violence affects people of all ages, genders, religions, incomes, races, cultures, education levels, and sexual orientations.

Additionally, domestic violence has a significant impact on the workplace. Domestic violence does not stay at home when employees go to work. Violence can affect employees in the workplace by interfering with the employee's ability to safely perform his or her work duties. Employees affected by domestic violence may also have attendance problems due to violence and the abuser's controlling behaviors, which can result in an employee's low morale and reduced productivity.

The policy is named after Barbara Warner to honor her memory. Barbara was an employee of the Ohio Department of Health and was a victim of domestic violence throughout the course of her marriage; she was eventually murdered by her husband on May 27, 1997. Executive Order 2019-09D is critical because it sends the message that the State of Ohio is committed to having its employees work in healthy environments free from abusive behaviors. Ultimately, it is the hope that the Barbara Warner Domestic Violence Workplace Policy will provide guidance for management and employees on how to address and reduce the occurrence of domestic violence and its devastating impact on State of Ohio employees.

Note: The term "intimate partner violence," or IPV, is sometimes used interchangeably with "domestic violence" in this report. The scope of domestic violence may be broader, including household members other than intimate partners.

Crisis and Opportunity: COVID-19, Race, and Domestic Violence

The Barbara Warner Workplace Domestic Violence (BWWDV) Committee started state fiscal year (SFY) 2020/2021 with major new initiatives made possible through the support of Governor Mike DeWine to amplify and expand on prior work. Committee members worked with the DAS team to align a revised policy with the Governor's priorities and revisited the online training curriculum. The resulting content goes beyond knowledge and awareness to support skill building for managers to talk about these difficult topics with those they supervise, and to encourage all employees to take action in difficult situations. The DAS Office of Talent Management, Learning and Professional Development used the curriculum to design new online training modules.

Domestic violence in the face of COVID-19

Home is not always a safe place, and the COVID-19 pandemic created new areas of risk for survivors of domestic violence. Risk factors include increased isolation from friends and family, reduced financial security, and additional areas of threat related to health and safety.

Rates of domestic violence increased during the COVID-19 lockdowns. Resources and funding for survivors plunged, however. The Ohio Domestic Violence Network reports fatalities were 14% higher in the first few months of the pandemic than in the same period in 2019. Calls to The National Domestic Violence Hotline went down from 2,000 calls per day to 951 calls from March 10 to 24, 2020. Survivors probably couldn't access help from providers, like hospitals, shelters, and legal offices, because of the spike in illness and deaths.¹

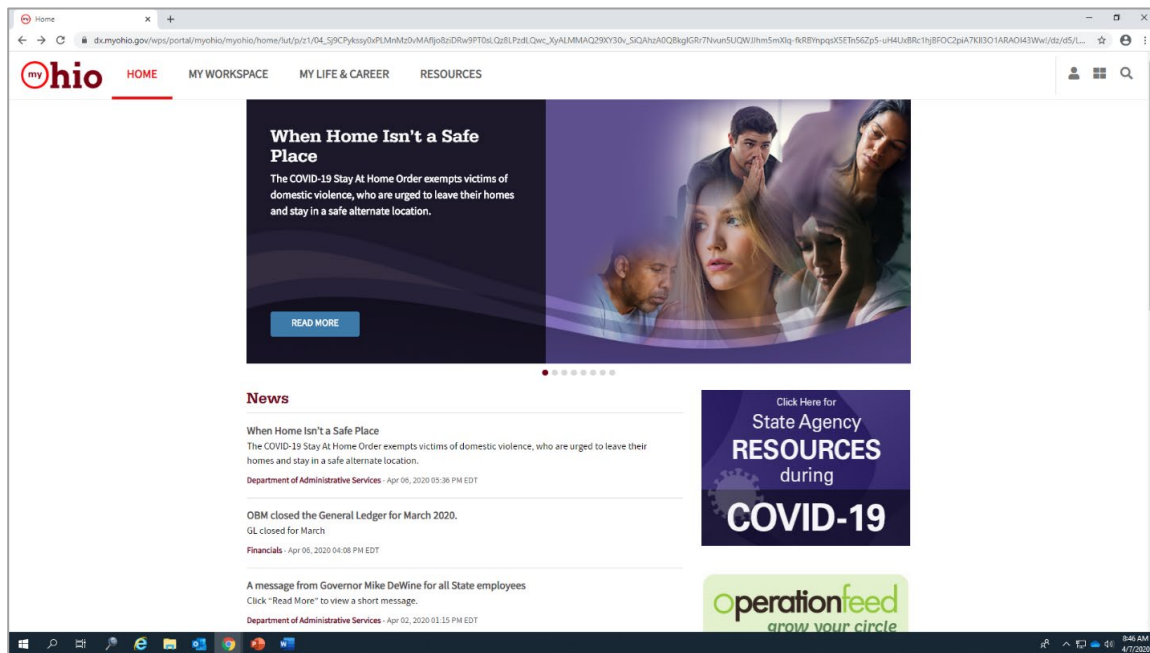
¹ Hans, Komal *"The Alert" – Volume 37, Issue 1 – Legal Aid Society of Cleveland (lasclv.org)*.

Data from the Ohio Domestic Violence network (ODVN) shows that the number of families needing help has increased dramatically from 2019 to 2020: more than 50% of ODVN programs reported an increase in survivors seeking shelter, calls to the hotline, or other requests for services in 2020 compared with 2019. Some programs have experienced nearly triple the number of victims needing services.²

Fifty-eight percent of programs noted an increase in the severity of violence and injuries reported, including an alarming increase in strangulation.³

The Stay at Home order announced by Governor DeWine in March 2020 specifically exempted victims of domestic violence. The order states: “Individuals whose residences are unsafe or become unsafe, such as victims of domestic violence, are permitted and urged to leave their home, and stay at a safe alternate location.”

In early April, the BWWDV Committee partnered with DAS to post information for employees who may be experiencing domestic violence as the opening banner on the “MyOhio” website. The posting included safety tips and resources, as well as a link to an article from the National Domestic Violence Hotline with examples of what domestic violence might look like in the context of COVID-19.



² The Ohio Domestic Violence Network (ODVN) surveyed its 75 member programs from Jan. 8 to 27, 2021, about the prevalence of domestic violence during the pandemic. The survey also measured the effects of budget cuts in 2019 and 2020. A total of 71 programs responded, a 94% response rate.

³ Ibid

The article lists examples of ways in which a partner may be taking advantage of this crisis in a way that is controlling. From the article:

Here's how COVID-19 could uniquely impact intimate partner violence survivors:

- Abusive partners may withhold necessary items, such as hand sanitizer or disinfectants.
- Abusive partners may share misinformation about the pandemic to control or frighten survivors, or to prevent them from seeking appropriate medical attention if they have symptoms.
- Abusive partners may withhold insurance cards, threaten to cancel insurance, or prevent survivors from seeking medical attention if they need it.
- Programs that serve survivors may be significantly impacted – shelters may be full or may even stop intakes altogether. Survivors may also fear entering shelter because of being in close quarters with groups of people.
- Survivors who are older or have chronic heart or lung conditions may be at increased risk in public places where they would typically get support, like shelters, counseling centers, or courthouses.
- Travel restrictions may impact a survivor's escape or safety plan – it may not be safe for them to use public transportation or to fly.
- An abusive partner may feel more justified and escalate their isolation tactics.⁴

Here's what our advocates have heard from some survivors reaching out:

- *"A chatter mentioned that the abuser was using the virus as a scare tactic to keep the survivor away from their kids."*
- *"A chatter said the abuser was using COVID-19 as a scare tactic so that they would not visit family."*
- *"A health professional still living with their abuser called and said they were physically abused that night because their abuser was sure they were trying to infect them with COVID-19."⁵*

⁴ <https://www.thehotline.org/2020/03/13/staying-safe-during-covid-19/>.

⁵ Ibid.

Domestic Violence, Race, and Support for Survivors

While COVID-19 was a new and unexpected challenge, there is nothing new about the disproportionate impact of partner violence on women of color, or the lack of critical supports and protections available to these women. What has been new is the unprecedented attention to documented incidents of police violence, and an increased understanding of the reasons and extent to which survivors of color are unwilling or unable to use the traditional mechanisms of the criminal justice system in the aftermath of domestic violence.

According to a survey conducted by the Ohio Domestic Violence Network, Black/African American women, other women of color, immigrants, LGBTQ+ and Deaf or Hard of Hearing survivors were over-represented among the participants who said they had difficulty getting help from the police, courts, and social services. And victims who felt their concerns were not taken seriously by the police were much more likely to come from marginalized communities.⁶

These issues are among the reasons why centering on survivors is the priority for policy and training guidance, emerging from the reality that survivors are the experts in their situation. Support and available accommodations must be provided regardless of survivor decisions, such as staying or leaving the relationship and whether or not to enter into the criminal justice system.

⁶ Network News, Ohio Domestic Violence Network, March 2022

Black women's unequal access to quality, affordable health care and heightened vulnerability to poverty are factors that may exacerbate the negative impacts of domestic violence on their health and well-being.⁷

For women of color in particular, there is evidence that defensive actions in situations of victimization are more likely to be interpreted as aggressive.⁸

Many Black women and girls who are survivors of violence experience criminalization through arrest, incarceration, and entry into juvenile detention centers.⁹

Another potential consequence of IPV is an increased rate of HIV infection among African American women who are abused.¹⁰

In one study of a predominantly African American sample of HIV-infected women, the author concluded that the risk for HIV infection was increased because these women were trapped in abusive relationships with HIV-positive men and were not able to negotiate sexual activity with their partners.¹¹

⁷DuMonthier, Asha, Childers, Chandra, and Milli, Jessica. The Status of Black Women in the United States, Institute for Women's Policy Research. Page 120. <https://iwpr.org/wp-content/uploads/2020/08/The-Status-of-Black-Women-6.26.17.pdf>.

⁸Crenshaw, Kimberlé. 2012. "From Private Violence to Mass Incarceration: Thinking Intersectionally About Women, Race, and Social Control." UCLA Law Review 59 (6): 1418–72.

⁹DuMonthier, Asha, Childers, Chandra, and Milli, Jessica. The Status of Black Women in the United States, Institute for Women's Policy Research. Page 122. <https://iwpr.org/wp-content/uploads/2020/08/The-Status-of-Black-Women-6.26.17.pdf>.

¹⁰Lichtenstein, Bronwen. "Domestic Violence, Sexual Ownership, and HIV Risk in Women in the American Deep South." Social Science and Medicine 60, no. 4 (2004): 701–714.

¹¹Jamila K. Stockman, Marguerite B. Lucea, Richelle Bolyard, Desiree Bertand, Gloria B. Callwood, Phyllis W. Sharps, Doris W. Campbell & Jacquelyn C. Campbell (2014) Intimate partner violence among African American and African Caribbean women: prevalence, risk factors, and the influence of cultural attitudes, Global Health Action, 7:1, DOI:[10.3402/gha.v7.24772](https://doi.org/10.3402/gha.v7.24772).

Ohio – Scope of the Problem and Expanded Response

In an attempt to better understand the prevalence and circumstances of domestic violence fatalities in Ohio, the Ohio Domestic Violence Network (ODVN) annually reviews media reports identified by staff members or local member programs. Fatalities in these reports include targeted victims, perpetrators, and others at incidents. The full content of these annual reports can be found at www.odvn.org.

Since 2015, ODVN has identified nine cases of workplace domestic violence that resulted in loss of life. Deaths included seven primary victims, one law enforcement officer, one co-worker, one relative of the primary victim, and three perpetrators. Two co-workers were injured but survived.

Revised and Expanded Policy

The Barbara Warner Workplace Domestic Violence Policy was revised to include language from Governor DeWine's executive order expanding the definition of domestic violence to include victims of dating violence, reflecting modifications made to Ohio law last year. It also directs all state entities to take necessary corrective actions, up to and including termination, when an employee commits or threatens to commit domestic violence on state property, at state-sponsored events, or when using state resources, and to contact law enforcement if an incident occurs.

"As an employer, we are in a unique position to provide a safe and supportive environment for employees experiencing abuse in their relationships and to get them the help they need," said Matt Damschroder, who was at that time the DAS Director. "We can do that by providing our front-line staff and training and tools they need to address this topic."

New Online Training Modules for Managers and Employees

The State of Ohio rolled out a revised training for state employees during the 2019 October National Domestic Violence Awareness Month. Governor DeWine said "Domestic violence is unacceptable and far too common; it is our hope is that this enhanced program will give state employees a better understanding of signs associated with domestic violence, resources available, and how to appropriately report domestic violence."

In partnership with the BWWDV Committee and the Department of Health, the DAS Human Resources Division developed two web-based trainings, one for managers and one for other employees. Training is mandatory for all managers, equipping them with helpful techniques when talking with staff who may be experiencing or causing harm in a relationship. All current managers/supervisors were required to complete this web-based training by April 24, 2020. Any new manager/supervisor will be required to complete the training within ninety (90) days of hire/promotion.

The employee web-based training is not required; however, DAS strongly encouraged

appointing authorities to consider requiring the training and many did. This training provides skills to assist staff to better notice and support a co-worker impacted by violence in any relationship.

As part of knowledge and awareness content, both trainings go a step deeper than previous online training to include a skill building component. In the manager training, video clips demonstrate examples of a manager talking to an employee who may be experiencing harm in a relationship, and to an employee who has used their work phone to make personal repetitive and persistent phone calls. In the employee version, examples include ways employees can interrupt behaviors and language that may be causing harm or perpetuating a culture in which abuse in relationships is normalized. The trainings conclude with an invitation to reach out for additional in-person training for those interested in deepening their skills in these areas.

The completion rate of training by managers is below.

Statewide Domestic Violence Training by Managers SFY 2020/2021	
Number Enrolled	9,134
Number Completed	8,392
Percentage Completed	91.88%

The completion rate for non-manager employees, including both those mandated by their agency and those who were encouraged but not mandated to complete the training, is below.

Statewide Domestic Violence Training by Non-managers SFY 2020/2021	
Number Enrolled	39,367
Number Completed	27,874
Percentage Completed	70.81%

In-Person Domestic Violence Training

The BWWDV Committee has developed in-person training, which will be available to agencies in a variety of ways.

Trainings can address one or more of the following topic areas:

- How employees can have conversations about domestic violence that will make a difference in the workplace and in their communities.
- How to equip employees with skills to become engaged bystanders in their workplace and community in order to prevent domestic violence.
- How employees may respond as a co-worker or manager when they have concerns that someone is experiencing domestic violence or causing harm in a relationship.
- How to respond when someone they know is affected by family violence.

All trainings address the reality that domestic violence occurs across all areas of difference – race and ethnicity, socioeconomic, religion, LGBTQ+, disability, etc. Responses from human resources personnel and managers should always center on the survivor and let the survivor lead the way regarding what will work best to secure safety and personal needs.

In-person programming has been offered as two- or three-hour sessions; as a result of the pandemic, plans are in progress to make these trainings available virtually.

Resources for Employees

The revised policy requires each agency, board and commission to maintain and post a list of resources for survivors and perpetrators of domestic violence in all break rooms, comparable visible locations, and on the agency's customary means of electronic publications (e.g., Intranet). The Department of Administrative Services developed a resource poster that meets this requirement and was provided in hard copy and electronically to all agencies.

In addition to the resource poster, many agencies provide resource cards in restrooms. These pocket-sized resources, donated by The Center for Family Safety and Healing, are placed in both women's and men's restrooms. The restroom location allows an employee to confidentially and discretely take a list of resources.

Other resources developed by the committee include:

- Guidance for managers document – resource for managers on effective conversations with employees who may be victims of domestic violence or causing harm in their relationships. This provides an accessible resource for managers to refer to in specific situations.
- Updated listing of batterer's treatment programs, which was made available to EAP and other partners.

Training for Human Resources Points of Contact

The policy required human resources directors to establish at least one human resources point of contact for employees to reach out to directly for support and resources and to share concerns. Directors were asked to identify someone who is familiar with the statewide policy, has access and knowledge of available resources, and is able to have conversations with employees about domestic violence. Although the policy only requires one person be established, best practice is to have identified more than one person who can share the responsibilities of this role.

Each version of the web-based training directs employees to reach out to their agency human resources point of contact for more information and support in responding to employees who are experiencing harm or causing harm in their relationships. Communication to staff, including the name and contact information of the human resources point of contact, was to be included when the agency scheduled or announced the web-based training for staff. This information was required to be provided to all employees, regardless of whether they are required to take either training.

To maximize the capacity for these points of contact to respond, the BWWDV Committee developed a three-hour training tailored specifically for these HR points of contact.

This training includes review of the policy and background information on domestic violence, with the primary focus on concrete and specific ways that the work place may be impacted. These include accommodations that might be possible to support those experiencing harm or going through the process of leaving and/or prosecuting after violence, and ways that a person who has caused harm might be held accountable.

The training was delayed and then moved online due to the state “Stay At Home” order. By the end of June 2021, 67 participants, representing the majority of the human resources agency points of contact, had been trained. Evaluations show that participants agreed that the training was helpful and provided information they needed to do their jobs.

Training for Managers

A two-hour training is available for State of Ohio managers; this training includes video examples of managers modeling effective conversations with employees who may be victims of domestic violence or causing harm in their relationships, as well as State of Ohio specific situations and resources. The training can now be offered virtually as well as in person, and was provided to about 100 managers at the Ohio Attorney General’s office at the request of the agency’s Office of Human Resources. Plans are in process to offer this training for other State of Ohio managers.

Some comments from the evaluations:

Given our remote work from home status, the presentation went well and allowed sufficient time for participant interaction and Q&A. Well done.

Great presenters. Very interesting to hear different examples of issues that have happened. It helps with identifying an issue that may present itself.

Below is some feedback from the online training rolled out in October 2019:

The Impact of Domestic Violence in the Workplace – Role of the Manager and Responding to Domestic Violence in the Workplace – As an Employee.

“The one video in this training is a great tool for those that do not have experience in recognizing domestic violence. The examples of how to talk to someone who may be a victim or survivor of domestic violence or who could be causing domestic violence were really helpful. More examples with various situations could be nice to have available, though I appreciate the training wasn’t too long.”

“I really like that ODH requires this training and gives real-world examples that one could encounter in the workplace, and how one might respond. As someone who has experienced domestic violence in the past, in the form of emotional and sexual abuse, I can’t say that I personally learned any new information, but I am happy that this information might help others see that it is a ‘real’ issue, and how misogyny contributes to domestic violence. It’s such a taboo subject and it’s very difficult to come forward given the amount of shame and embarrassment that victims feel on a daily basis. One thing that could improve this training is to talk about the aftereffects of intimate partner violence and the impact it has on the victim’s life, even years later. Even though, I am in a healthy relationship now, I often feel that there are few resources for those lasting effects of previous intimate partner violence. I feel that this training would benefit from allowing some space to talk about PTSD, anxiety, etc. from past experiences, and that it is ‘ok’ to feel this even years later. These lasting effects of intimate partner violence also affect productivity at work (among other things) and should be included. Though obviously, productivity should not be the only reason to offer support. Please consider talking about how intimate partner violence affects victims, even when those toxic relationships have ended. I really think this needs to be normalized in the workplace, and in the world at large. Often times, past victims, like me, for instance, feel that they ‘should’ not have these lingering issues for something that happened so long ago. Or that past emotional abuse is ‘not good enough’ or ‘does not compare’ to physical violence or stalking, when considering treatment. I feel that past victims are often left out of the conversation regarding domestic violence and I would love to see that perspective incorporated.”

From ODNR Division of Wildlife employee Cassandra Mitchell, sent Nov. 26, 2019, and used here with permission.

"I just wanted to share how much I appreciate Governor DeWine and all the staff such as yourself that made the Domestic Violence in the Workplace training possible. Back in 2014, I worked for another state agency and received a phone call on my way to work that changed my life forever. My mother Brenda Gates, also a state employee at the time, was shot by her husband with a high-powered rifle twice within close range. She was life flighted to Ohio State University Wexner Center and given 65+ liters of blood (human body holds on average 5 liters of blood) and put on a heart & lung machine. My mother coded 5 times and was not expected to survive. Miraculously my mother did survive. Her left leg was amputated above the knee and her right leg was salvaged through multiple surgeries. She later beat the odds and returned to work part-time with the state, but she was unable to continue to work due to the extent of her injuries and plethora of physical therapy and medical appointments. She did not have enough years of state service to fully retire. If this tragedy had never happened, my mother would still likely be working for the State of Ohio today; as she loved her job. Due to this crime, I took time off work to act as my mother's Medical & Financial Power of Attorney, caregiver, and a witness for the Prosecution in a jury trial that sentenced my prior stepfather to 44 years in prison. I know from first-hand experience how domestic violence impacts the workplace as a state employee, as well as the lifelong effects on survivors & their families. Please pass along my gratitude for this training. My hope is that this training increases awareness to help prevent tragedies such as what happened to Barbara Warner, my mother, and many others."

Ohio Department of Rehabilitation and Correction (ODRC) includes mandated training on domestic violence annually for employees, and revised the online training to provide additional content. Completion numbers for this training are below.

Completion of ODRC Courses as of June 16, 2021

Responding to Domestic Violence as an Employee:

Number Enrolled: 10,414

Number Completed: 10,383

Responding to Domestic Violence as a Manager:

Number Enrolled: 2,373

Number Completed: 2,356

Looking Ahead/Next Steps

- Work with human resources contacts to ensure online training, including for new hires and those promoted into supervisory roles.
- Continue distribution of resources.
- Make available in-person or virtual training for managers and employees as needed.

Success in reducing domestic violence for State of Ohio employees will increase safety and improve the well-being of both employees and children of employees. As a model for other workplaces, Ohio is providing leadership for a safer Ohio.

Meet the Committee

We are thankful for all our members on the Barbara Warner Workplace Domestic Violence Committee. The combination of strengths, talents, experience, and knowledge about the issue of domestic violence continues to move this committee forward with the work that is needed in the State of Ohio. Many members have served since the committee started in 2008.

Chrystal Alexander, MS, is the Administrator in the Office of Victim Services at the Ohio Department of Rehabilitation and Correction (ODRC). Prior to her position with the ODRC, she was the director of the Ohio Family Violence Prevention Center as well as having previous experience with law enforcement-based and prosecutor-based victim advocacy programs.

Marisah Ali, J.D., is a Policy Analyst at the Department of Administrative Services in the Office of Collective Bargaining. She also assists with statewide human resource policies and provides agencies with guidance on the five collective bargaining agreements.

Brooklyn Armstead, MSW, is a consultant for the State of Ohio's Employee Assistance Program, with prior experience in child welfare and drug and alcohol treatment.

Sheryl Clinger, BA, serves as the Director of External Affairs for The Center for Family Safety and Healing (TCFSH), and serves on multiple local and state committees that focus on family violence.

Kate Foulke, BA works in the Office of Criminal Justice Services at the Ohio Department of Public Safety as the Family Violence Prevention Center Administrator and coordinates the Family Violence Prevention Council. She has worked in the domestic violence and victim advocacy fields, including with the Department of Youth Services and local courts.

Julie Griffith, BA, is a Training Coordinator with The Center for Family Safety and Healing, where she partners with businesses, healthcare institutions, and government and non-profit organizations in central Ohio to provide education to employees and community members around the topic of family violence.

Sandra Huntzinger, MSW, is the Victim Service Coordinator for the Ohio Attorney General's Sexual Assault Forensic Exam program. She also facilitates a statewide team of experts who train on the benefits of a coordinated response to victims of domestic and sexual violence.

Cathy Mockus, MEd, LSW, APP, is a Public Health Consultant in the Sexual Assault and Domestic Violence Prevention Program at the Ohio Department of Health. She has experience in areas including employee assistance, counseling with survivors and their families, HIV/AIDS services, and emergency preparedness.

Mary O'Doherty, BA, is the Executive Director of the Ohio Domestic Violence Network. Previously, she was deputy director of the Kentucky Coalition Against Domestic Violence.

Aimee Szczerbacki, BA, Esq., is the Policy Administrator at the Department of Administrative Services in the Office of Collective Bargaining. She is also responsible for all statewide human resource policies and providing guidance to agencies on the civil service law.

Debra Seltzer, MPA, is the Program Administrator for the Sexual Assault and Domestic Violence Prevention Program at the Ohio Department of Health. Prior to her position with the state, she worked with local and state sexual assault crisis and prevention providers.